

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT:

THE HONOURABLE MRS. JUSTICE ANU SIVARAMAN

THURSDAY, THE 28TH DAY OF JUNE 2018 / 7TH ASHADHA, 1940

WP(C).No. 16952 of 2018

PETITIONER

A.K.SHAJI,
ARAKKAL HOUSE, PERINKIRI.P.O.,
IRITTI, KANNUR.670 706.

BY ADV.SMT.K.SUNITHA VINOD

RESPONDENTS:

1. THE ELECTION COMMISSION OF INDIA
NIRVACHAN SADAN, ASHOK ROAD,
NEW DELHI.110 001.
2. THE RETURNING OFFICER,
NO.110, CHENGANNUR LEGISLATIVE ASSEMBLY
CONSTITUENCY, OFFICE OF THE RDO,
CHENGANNUR, ALAPPUZHA.689 121.
3. SAJI CHERIAN,
THENGUMTHARAYIL, KOZHUVALLOOR MURI,
MULAKKUZHA VILLAGE, CHENGANNUR,
ALAPPUZHA.689 121.

R1 BY ADV. SRI.MURALI PURUSHOTHAMAN, SC,
R2 BY GOVERNMENT PLEADER SRI.P.G. PRAMOD

THIS WRIT PETITION (CIVIL) HAVING COME UP FOR ADMISSION
ON 28-06-2018, THE COURT ON THE SAME DAY DELIVERED THE FOLLOWING:

APPENDIX

PETITIONER(S) ' EXHIBITS

- EXHIBIT P1 A TRUE COPY OF THE NOMINATION ALONG WITH THE
AFFIDAVIT IN FORM 26 SUBMITTED BY THE 3RD
RESPONDENT.
- EXHIBIT P2 A TRUE COPY OF THE OBJECTION SUBMITTED BY THE
PETITIONER TO THE 2ND RESPONDENT DATED
10.05.2018.
- EXHIBIT P3 A TRUE COPY OF THE ADDITIONAL OBJECTION AND
PETITION SUBMITTED BY THE PETITIONER TO THE 2ND
RESPONDENT DATED 11.05.2018.
- EXHIBIT P4 A TRUE COPY OF THE REQUEST DATED 11.05.2018
SUBMITTED BY THE PETITIONER BEFORE THE 2ND
RESPONDENT.
- EXHIBIT P5 A TRUE COPY OF THE REQUEST DATED 11.05.2018
SUBMITTED BY THE PETITIONER BEFORE THE 2ND
RESPONDENT WITH ACKNOWLEDGMENT.

RESPONDENTS EXHIBITS & ANNEXURES

- ANNEXURE-1 THE PHOTOCOPY OF THE JUDGMENT DATED 09.07.2014
IN WRIT PETITION NO. 12066/2014 OF THE HON'BLE
HIGH COURT OF ANDRA PRADESH

/TRUE COPY/

PA TO JUDGE

sdr/-
18.7.18

ANU SIVARAMAN, J.

W.P(C).No. 16952 of 2018

Dated this the 28th day of June, 2018

JUDGMENT

The petitioner has approached this Court seeking the following prayers:

- “i. issue a writ of mandamus or any other writ order or direction to the 2nd respondent to consider and pass appropriate orders on Exhibit P2 and Exhibit P3 petition.*
- ii. issue a writ of mandamus or any other writ order or direction commanding the 2nd respondent to file a complaint against the 3rd respondent before the Police authorities for taking cognizance against the 3rd respondent for filing a false affidavit in violation of the provisions of Section 33 and 33A of the Act, 1951 and Rule 4A of the Conduct of Election Rules under the provisions of 125A of The Representation of People Act.*
- iii. to declare that the 3rd respondent had filed a false affiavit as Form No.26 along with the nomination in election to Chengannur Legislative Assembly Constituency liable to be prosecuted under Section 125A of the Representation of People Act, 1951.”*

2. Heard learned counsel for the petitioner and the learned Standing Counsel for the Election Commission of India as well as the learned Government Pleader.

3. It is submitted by learned counsel for the petitioner that the petitioner had submitted Exhibits P2 and P4 objections with regard to the nomination of the 3rd respondent in the by-election held on 25.8.2018 and that the respondents are duty bound to act upon the said objections and to take action against the 3rd respondent for filing a false affidavit in violation of the provisions of Section 33 and 33A of the Representation of the People Act, 1951 (for short, 'the Act').

4. The learned Standing Counsel for the 1st respondent would contend that in view of the clear bar contained in the Act, no relief as prayed for by the petitioner can be granted by this Court in exercise of its powers under Article 226 of the Constitution of India. Relying on the decision of this Court in **Ganesh Kumar K.B v. P.K.Raju and another** [2013(2) KHC 348], it is contended that even in case the petitioner seeks prosecution against the 3rd respondent under the provisions of Section 125A of the Act, the petitioner would have to file a private complaint. It is not provided in the election laws or in any other provision of law that the Returning Officer alone has to make complaint with regard to commission of offence under under Section 125A of the Act.

5. Learned counsel for the petitioner contends that the judgment has referred to only Section 193 IPC and the provisions of Section 195(1)(b) Cr.P.C have not been looked into by this Court in the said judgment.

6. I find that this Court had specifically considered the provisions of Section 193 IPC as well as Section 195(1)(b) Cr.P.C which had been relied on by the petitioner in that case and it had been held that it is open to even a private party to initiate proceedings for prosecution of an offence, if he has filed false affidavit along with his nomination paper and has thereby committed offence under Section 125A of the Act. The provisions of Sections 193 IPC and 195(1)(b) Cr.P.C having been considered by this Court in the decision referred to above, I am of the opinion that the contention raised by the petitioner that he has no other remedy but to approach this Court cannot be accepted. This writ petition is therefore dismissed with liberty to the petitioner to take up the matter in appropriate proceedings, in accordance with law. The contentions of the parties are left open.

Sd/-
ANU SIVARAMAN
JUDGE